

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DOMINIC JOHNSON,

Plaintiff,

INDEX NO.: 520930/2017

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. JAMES BURNETT,
Shield #11314 and P.O. GERARD P. FENTON, Shield
#6680,

Defendants.
-----X

Plaintiff, DOMINIC JOHNSON, by his attorney PAMELA S. ROTH, ESQ., of The Law Office of Pamela S. Roth, Esq. P.C., complaining of defendants, THE CITY OF NEW YORK (hereinafter "CITY"), P.O. JAMES BURNETT, Shield #11314 (hereinafter "BURNETT"), and P.O. GERARD P. FENTON, Shield #6680 (hereinafter "FENTON") alleges upon information and belief, as follows:

1. At all times hereinafter mentioned, defendant, THE CITY OF NEW YORK (hereinafter "CITY"), was and still is a municipal corporation, duly organized and existing under and pursuant to the laws of the State of New York.
2. Defendant THE CITY OF NEW YORK was and is a municipal corporation duly incorporated and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, defendant, CITY, maintained a Police Department, the employees of which act as its agents in the area of law enforcement.
4. Defendant THE CITY OF NEW YORK is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It is authorized

to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant THE CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by the New York City Police Department.

5. At all times hereinafter mentioned, defendant, P.O. JAMES BURNETT, Shield #11314 (hereinafter "BURNETT"), was a police officer with the New York City Police Department.

6. At all times hereinafter mentioned, defendant, P.O. GERARD P. FENTON, Shield #6680 (hereinafter "FENTON"), was a police officer with the New York City Police Department.

7. At all times hereinafter mentioned, defendant, BURNETT, was an employee and/or agent of the New York City Police Department.

8. At all times hereinafter mentioned, defendant, FENTON, was an employee and/or agent of the New York City Police Department.

9. At all times hereinafter mentioned, defendant, BURNETT, was acting within the scope of his employment as a detective/police officer with the Police Department of the City of New York.

10. At all times hereinafter mentioned, defendant, FENTON, was acting within the scope of his employment as a detective/police officer with the Police Department of the City of New York.

11. At all times hereinafter mentioned defendant, BURNETT, is sued individually and in his official capacity.

12. At all times hereinafter mentioned defendant, FENTON, is sued individually and in his official capacity.

13. At all times, plaintiff DOMINIC JOHNSON, was and still is a resident of the County of Kings, City and State of New York. He is an African American man.

14. Defendant BURNETT was a police officer assigned to the 77th Precinct and participated in the events described in this complaint.

15. Defendant FENTON was a police officer assigned to the 77th Precinct and participated in the events described in this complaint.

16. That on October 28, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed P.O. JAMES BURNETT, Shield #11314 (hereinafter "BURNETT"), and P.O. GERARD P. FENTON, Shield #6680 (hereinafter "FENTON") as Police Officers employed by the New York City Police Department as Police Officers from the 77th Precinct, as agents, servants and/or employees.

17. That on October 28, 2014, and at all times hereinafter mentioned and upon information and belief, the plaintiff, DOMINIC JOHNSON, was lawfully present on the public street and/or thoroughfare of the corner of Franklin Avenue and St. John's Place, County of Kings, City and State of New York.

18. That on October 28, 2014, and at all times hereinafter mentioned and upon information and belief, the plaintiff, DOMINIC JOHNSON, was attacked, assaulted, beaten, battered, unlawfully arrested, and falsely arrested by defendants, P.O. JAMES BURNETT, Shield #11314 (hereinafter "BURNETT"), and P.O. GERARD P. FENTON, Shield #6680 (hereinafter "FENTON"), who were acting within the scope of their employment with the

defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, at the aforesaid premises.

19. That on October 28, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, P.O. JAMES BURNETT, Shield #11314 (hereinafter "BURNETT"), and P.O. GERARD P. FENTON, Shield #6680 (hereinafter "FENTON"), were working within the scope of their employment and authority with defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when they attacked, assaulted, beaten, battered, and unlawfully arrested and confined the plaintiff, DOMINIC JOHNSON.

20. That on October 28, 2014, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

21. Defendants, The City of New York, the New York City Police Department, the individually named Defendants, acting individually and in their official capacities, jointly and severally, did cause Plaintiff, DOMINIC JOHNSON, to be falsely arrested, falsely imprisoned, assaulted, battered, and maliciously charged with crimes he did not commit.

22. On October 28, 2014, defendant The City of New York employed the aforementioned police officers who were agents, servants and/or employees of the New York City Police Department.

23. On October 28, 2014, defendants The City of New York and The New York City Police Department were responsible for the actions of the aforesaid police officers.

24. That as a result of the aforesaid assault, battery, false arrest and confinement, malicious prosecution, and violation of his civil rights plaintiff, DOMINIC JOHNSON, sustained

serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit, loss of employment and suffered emotional and physical distress and injuries mental shock, mental anguish and psychological trauma and was otherwise injured.

25. Plaintiff DOMINIC C. JOHNSON was verbally abused and beaten while he was lawfully present at or near the corner of Franklin Avenue and St. John's Place visually observing and videotaping an arrest being made by the defendants herein of Michael Turner.

26. Plaintiff committed no crime.

27. Defendant P.O. Burnett immediately grabbed Plaintiff and repeatedly smashed his face and head onto the pavement.

28. Plaintiff was brutally handled, punched, kicked, abusively treated, placed in a chokehold, handcuffed and choked, then he was dragged to the back of the patrol car while handcuffed, thrown to the ground, repeatedly punched on his body, had an assault and battery committed upon him, and put in imminent fear of life or limb.

29. Plaintiff was never told why he was arrested. He was never read his Miranda warnings.

30. Plaintiff sustained public embarrassment, physical abuse, harassment and illegal confinement.

31. Plaintiff claims that the Defendants the CITY OF NEW YORK, P.O. BURNETT and P.O. FENTON viciously and without provocation assaulted Plaintiff, are responsible for money damages for the following: Plaintiff was caused severe personal injuries; public embarrassment, abusively treated, verbally and physically assaulted/battered and abused, put in imminent fear of life, harassment, negligent and intentional infliction of emotional distress, illegal confinement, malicious prosecution, and the deprivation of Claimant's constitutional

rights pursuant to 42 U.S.C. §1983 et seq.

32. Defendants The CITY OF NEW YORK, P.O. BURNETT and P.O. FENTON, their agents, servants and/or employees were negligent in performing their duty and in their failure to protect plaintiff DOMINIC C. JOHNSON from imminent and actual harm, in hiring and/or retaining in its employ personnel who are violent persons who would assault and commit battery on law abiding individual and in failing to adequately train and supervise its personnel, in causing or permitting or allowing an unwarranted use of force against Plaintiff and an unreasonable restriction of freedom and liberty and in causing allowing or permitting its personnel to violate Plaintiff's civil and constitutional rights.

33. On January 7, 2015, all criminal charges against Plaintiff were dismissed.

34. That this action falls within one or more of the exception of CPLR §1602, including, but not limited to CPLR §1602(11).

35. By reason of the foregoing, the plaintiff, DOMINIC JOHNSON, sustained damages in an amount exceeding the jurisdictional limits of all lower Courts.

36. The individually named Defendants BURNETT and FENTON were at all times acting under color of state law, to wit, under color of the statutes, ordinances, customs, policies and/or practices of the State of New York and/or City of New York and Defendants were also acting within the scope of and in furtherance of their employment.

37. At all times relevant herein, the individual Defendants BURNETT and FENTON violated clearly established constitutional standards under the First, Fourth, Fifth, Eighth and Fourteenth Amendments of which a reasonable police officer and/or public official under his or her respective circumstances would have known to be so violative.

38. Plaintiff, DOMINIC JOHNSON, duly served a Notice of Claim upon The City of

New York in the manner and mode required by law.

39. Plaintiff appeared for a hearing pursuant to General Municipal Law 50-h.

40. Thirty days have elapsed since the service of said Notices of Claim and Plaintiff's claims have not been adjusted or paid.

41. This action is brought within one year and ninety days from the date of occurrence complained of herein.

42. Plaintiff has complied with all conditions precedent applicable to the instant action.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE IMPRISONMENT ON BEHALF OF DOMINIC JOHNSON**

43. The plaintiff repeats and realleges each and every allegation set forth above in paragraphs "1" through "42" inclusive with the same force and effect as if more fully set forth at length herein.

44. That on October 20th, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, defendants, P.O. JAMES BURNETT and P.O. GERARD P. FENTON, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

45. That defendants, P.O. JAMES BURNETT and P.O. GERARD P. FENTON,, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

46. By reason of the foregoing, the plaintiff, DOMINIC JOHNSON, sustained damages in an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
NEGLIGENCE ON BEHALF OF DOMINIC JOHNSON**

47. The plaintiff repeats and realleges each and every allegation set forth above in paragraphs "1" through "46" inclusive with the same force and effect as if more fully set forth at length herein.

48. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to P.O. JAMES BURNETT and P.O. GERARD P. FENTON, were negligent, reckless and careless in assaulting, battering and in violating the civil rights of the plaintiff, DOMINIC JOHNSON.

49. As a result of said negligence, the plaintiff, DOMINIC JOHNSON, became sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

50. By reason of the foregoing, the plaintiff, DOMINIC JOHNSON, sustained damages in an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
NEGLIGENT HIRING AND RETENTION
ON BEHALF OF DOMINIC JOHNSON**

51. The plaintiff repeats and realleges each and every allegation set forth above in paragraphs "1" through "50" inclusive with the same force and effect as if more fully set forth at length herein.

52. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were

negligent in the hiring, training and retention of the defendants, P.O. JAMES BURNETT and P.O. GERARD P. FENTON, who assaulted, battered, choked and violated the civil rights of the plaintiff, DOMINIC JOHNSON.

53. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, P.O. JAMES BURNETT and P.O. GERARD P. FENTON, and continued to employ them and allowed them to be in contact with the public at large.

54. By reason of the foregoing, the plaintiff, DOMINIC JOHNSON, sustained damages in an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
ON BEHALF OF DOMINIC JOHNSON**

55. The plaintiff repeats and realleges each and every allegation set forth above in paragraphs "1" through "54" inclusive with the same force and effect as if more fully set forth at length herein.

56. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to P.O. JAMES BURNETT and P.O. GERARD P. FENTON, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

57. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, DOMINIC JOHNSON.

58. That as a result of said intentional and negligent acts, the plaintiff, DOMINIC JOHNSON, became sick, sore, lame and disabled, received severe and serious injuries in and

about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

59. By reason of the foregoing, the plaintiff, DOMINIC JOHNSON, sustained damages in an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
MALICIOUS PROSECUTION ON BEHALF OF DOMINIC JOHNSON**

60. The plaintiff repeats and realleges each and every allegation set forth above in paragraphs "1" through "59" inclusive with the same force and effect as if more fully set forth at length herein.

61. That on October 28, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, P.O. JAMES BURNETT and P.O. GERARD P. FENTON,, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report and false criminal charge in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

62. That on October 28, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, P.O. JAMES BURNETT and P.O. GERARD P. FENTON, were acting within the scope of their employment maliciously prosecuted the plaintiff.

63. That on October 28, 2014, and at all times hereinafter mentioned and upon information and belief as a result of the aforesaid malicious prosecution plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of enjoyment of opportunities and suffered emotional and physical distress and injury.

64. By reason of the foregoing, the plaintiff, DOMINIC JOHNSON, sustained

damages in an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
CIVIL RIGHTS VIOLATION ON BEHALF OF DOMINIC JOHNSON**

65. The plaintiff repeats and realleges each and every allegation set forth above in paragraphs "1" through "64" inclusive with the same force and effect as if more fully set forth at length herein.

66. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to P.O. JAMES BURNETT and P.O. GERARD P. FENTON, were acting under the color of law and within the scope of their authority, assaulted, battered, choked, stomped, falsely arrested and falsely imprisoned the plaintiff, DOMINIC JOHNSON, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

67. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to P.O. JAMES BURNETT and P.O. GERARD P. FENTON, acting under the color of law and within the scope of their authority, deprived the plaintiff, DOMINIC JOHNSON, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

68. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

69. That the assault, battery, false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

70. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to P.O. JAMES BURNETT and P.O. GERARD P. FENTON, acting under the color of law and within their authority as law enforcement officers within the employ of defendants, THE NEW YORK CITY POLICE DEPARTMENT.

71. That the defendants' actions were not privileged or immune.

72. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to P.O. JAMES BURNETT and P.O. GERARD P. FENTON, were not acting with immunity when they deprived plaintiff of his rights.

73. By reason of the foregoing, the plaintiff, DOMINIC JOHNSON, sustained damages in an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
CIVIL RIGHTS VIOLATION ON BEHALF OF DOMINIC JOHNSON**

74. The plaintiff repeats and realleges each and every allegation set forth above in paragraphs "1" through "73" inclusive with the same force and effect as if more fully set forth at length herein.

75. On October 20, 2014, Plaintiff, DOMINIC JOHNSON, was assaulted and battered by police officers employed by The City of New York without provocation.

76. As a result of the above mentioned unprovoked assault and battery, Plaintiff, DOMINIC JOHNSON, was injured, internally and externally, became sick, sore, lame and disabled and was caused to suffer and still suffers severe and permanent injuries and, upon information and belief, will continue to suffer pain and discomfort; and was caused to obtain medical care and

attention in an attempt to cure himself of said injuries.

77. As a result of the foregoing, Plaintiff, DOMINIC JOHNSON, demands judgment against Defendants CITY, BURNETT, and FENTON in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

EIGHTH CAUSE OF ACTION
ON BEHALF OF DOMINIC JOHNSON

78. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "77" as if more fully set forth herein.

79. The actions of Defendants heretofore described constitute an unlawful arrest, assault and battery and malicious prosecution, all in violation of Plaintiffs' civil rights.

80. Defendants violated Plaintiff's civil rights, including the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. Section 1981 and 1983.

81. Defendants deprived Plaintiff of his liberty in violation of their civil rights.

82. Defendants' actions were undertaken under color of law and would not have existed but for said Defendants using their official power.

83. The supervisors and policy making officers of Defendant CITY and its Police Department, as a matter of policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

84. Defendants have failed to properly or effectively train its employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

85. Defendant, CITY, has sanctioned the policy and practices described in the above paragraphs through its deliberate indifference to the effect of said policy upon the constitutional

rights of Plaintiff and others similarly situated.

86. Defendant, CITY, hired and retained in its employ Defendants BURNETT and FENTON and other police officers with knowledge that said police officers had vicious propensities and were, therefore, unfit to be police officers.

87. That Defendants' motivations were in contravention of the U.S. Constitution and the Constitution of the State of New York.

88. As a result of the foregoing, Plaintiff, DOMINIC JOHNSON, and have suffered serious and severe emotional distress, personal injuries, loss of earnings and loss to his reputations.

89. As a result of the foregoing, Plaintiff, DOMINIC JOHNSON, demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the courts of lesser jurisdiction.

**AS AND FOR AN NINTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF DOMINIC JOHNSON**

90. The plaintiff repeats and realleges each and every allegation set forth above in paragraphs "1" through "89" inclusive with the same force and effect as if more fully set forth at length herein.

91. The actions of the defendants herein-above alleged, were malicious, willful, contumacious and grossly negligent.

92. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to defendants P.O. JAMES BURNETT and P.O. GERARD P. FENTON, herein-above alleged.

93. By reason of the foregoing, the plaintiff, DOMINIC JOHNSON, sustained

damages in an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR AN TENTH CAUSE OF ACTION FOR
RESPONDEAT SUPERIOR ON BEHALF OF DOMINIC JOHNSON**

94. The plaintiff repeats and realleges each and every allegation set forth above in paragraphs "1" through "93" inclusive with the same force and effect as if more fully set forth at length herein.

95. That defendants, P.O. JAMES BURNETT and P.O. GERARD P. FENTON, were acting in furtherance of the duties owed to their employer, defendant, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

96. That at all times, defendants, P.O. JAMES BURNETT and P.O. GERARD P. FENTON, were acting within the scope of their employment.

97. That defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, were able to exercise control over defendants, P.O. JAMES BURNETT and P.O. GERARD P. FENTON's activities.

98. That defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, are liable for defendants, P.O. JAMES BURNETT and P.O. GERARD P. FENTON, actions under the doctrine of *respondeat superior*.

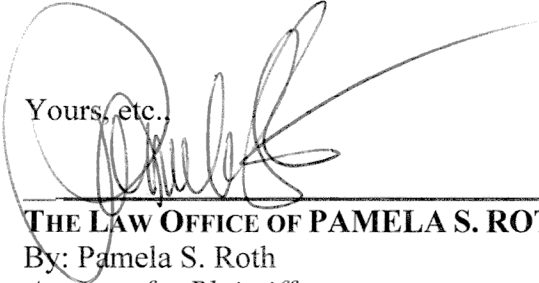
99. By reason of the foregoing, plaintiff DOMINIC JOHNSON suffered mental injuries, emotional injuries, deprivation of liberty and privacy, terror, humiliation, fear, damage to reputation and other psychological injuries. All of said injuries may be permanent.

100. That this has been an ongoing pattern by the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT as plaintiff was assaulted, battered, choked, stomped, falsely arrested, falsely imprisoned, maliciously prosecuted and

Cause of Action; plaintiff, DOMINIC JOHNSON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Ninth Cause of Action; plaintiff, DOMINIC JOHNSON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Tenth Cause of Action; together with attorneys' fees, and he costs and disbursements of this action.

Dated: Brooklyn, New York
April 1, 2018

Yours, etc.,



THE LAW OFFICE OF PAMELA S. ROTH

By: Pamela S. Roth

Attorney for Plaintiff

DOMINIC JOHNSON

2747 Coney Island Avenue

Brooklyn, New York 11235

(888) 466-4884

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DOMINIC JOHNSON,

Index No.: 520930/2017

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. JAMES BURNETT,
Shield #11314 and P.O. GERARD P. FENTON, Shield
#6680,

Defendants.
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VERIFIED COMPLAINT

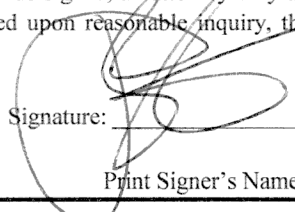
LAW OFFICE OF PAMELA S. ROTH, ESQ. P.C.

OFFICE ADDRESS:

2747 Coney Island Avenue
Brooklyn, New York 11235
(888) 466-4884

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney duly admitted to practice law in the State of New York, certifies that, upon information and belief based upon reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 4/1/2018

Signature: 

Print Signer's Name: PAMELA S. ROTH